

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2019-710

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR LICENSURE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF LESLIE KITTEL, REGISTRATION NO. LPCC 15664, LICENSE NO. LPC (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Leslie Kittel ("Applicant") as follows:

1. By application dated August 15, 2016, Applicant applied for registration to practice as a Licensed Professional Counselor Candidate ("LPCC") in the State of Colorado ("LPCC Application"). Applicant received her LPCC registration on September 29, 2017. On or about December 5, 2018, Applicant applied for licensure to practice as a Professional Counselor ("LPC") in the State of Colorado ("LPC Application"), and her request is currently pending.

2. The Board has jurisdiction over Applicant, the LPCC and LPC Applications, and the subject matter of this Stipulation and Final Agency Order ("Order").

3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Applicant's initial applications for registration as a LPCC and licensure as a LPC in the State of Colorado without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2019-710. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.

4. Applicant admits the following:

- a. On or about August 15, 2016, Applicant applied for registration as a LPCC in the State of Colorado.
- b. On her LPCC Application, Applicant answered “yes” to the question which states: “Have you ever received a deferred judgment or been convicted of or pled *nolo contendere* to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”
- c. On her LPCC Application, Applicant answered “yes” to the question which states: “Do you now abuse or excessively use, or have you in the last five years abused or excessively used, any habit forming drug, including alcohol, or any controlled substance that has a) resulted in any accusation or discipline for misconduct, unreliability, neglect of work, or failure to meet professional responsibilities; or b) affected your ability to practice psychotherapy safely and competently?”
- d. On or around May 30, 2017, Applicant submitted to an evaluation, and the evaluator concluded that Applicant is not safe to practice as a professional counselor without treatment and monitoring.
- e. On or about December 5, 2018, Applicant applied for a license to practice as a LPC in the State of Colorado, and her request is currently pending.
- f. On her LPC Application, Applicant answered “yes” to the question which states: “Has any disciplinary action ever been taken regarding any Psychotherapy/drug and alcohol services certification/license or any other healthcare or behavioral health license which you now hold or have ever held, including any disciplinary actions by the U.S. military, U.S. Public Health Service, or other U.S. federal governmental entity?”
- g. On her LPC Application, Applicant answered “yes” to the question which states: “Have you ever received a deferred judgment or been convicted of or pled *nolo contendere* to a violation of any federal, state, or local law relating to the possession, manufacture, distribution, or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”
- h. On her LPC Application, Applicant answered “yes” to the question which states: “Do you now abuse or excessively use, or have you in the

LAST 5 YEARS abused or excessively used, any habit forming drug, including alcohol, or any controlled substance that has: Resulted in any accusation or discipline for misconduct, unreliability, neglect of work, or failure to meet professional responsibilities? Affected your ability to practice safely and competently?”

i. On her LPC Application, Applicant answered “yes” to the question which states: “In the last five years, have you been diagnosed with or treated for a condition that significantly disturbs your cognition, behavior, or motor function, and that may impair your ability to practice safely and competently including but not limited to bipolar disorder, severe major depression, schizophrenia or other major psychotic disorder, a neurological illness, or sleep disorder?”

j. On or around September 29, 2017, Applicant entered into and is currently under a Stipulation and Final Agency Order with the Board in case number 2016-6464 (“2017 Order”) that includes the terms as outlined below. This Order is a continuation of the 2017 Order and is intended to also include Applicant’s LPC Application and case number 2019-710.

k. Applicant has admitted to a history of habitual and excessive drinking.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of section 12-43-222(1)(e), C.R.S., which states:

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5), C.R.S.

6. By virtue of the admissions contained in paragraphs 4 and 5, Applicant specifically agrees to maintain her LPCC as previously granted with the limitations outlined below, and to accept a LPC license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by sections 12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a license. Applicant consents to the following limitations to her registration and license within the meaning of

section 24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in sections 12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's registration and license to practice professional counseling in the State of Colorado are hereby placed on probation for two (2) years commencing from the effective date of the 2017 Order, or the date Applicant was approved for her LPCC registration, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Applicant is not practicing in the State of Colorado, and such period of probation shall resume at such time as Applicant resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a LPCC or LPC in the State of Colorado and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Board, and Applicant is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

11. During the period of probation, Applicant shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed, or prescribed by an authorized person other than Applicant. Applicant shall use such habit-forming drug, controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

12. Applicant agrees to random urinalysis testing to be monitored and administered by a Board-approved independent agency to ensure compliance with this Order. Urinalysis testing shall be on randomly-selected days each month. Applicant shall sign a release and/or execute any necessary waivers to ensure that the Board-approved agency may report on her progress and compliance with this Order to the Board.

TERMS AND CONDITIONS

13. Applicant will strictly observe the prohibitions set forth in section 12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

14. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

15. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

16. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to section 12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

17. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

18. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

19. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to section 12-43-224, C.R.S.

20. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

21. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any

provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

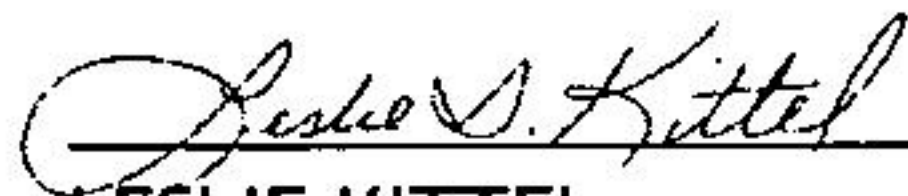
22. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

23. This Order shall be admissible as evidence at any hearing held before the Board.

24. This Order shall be a public record in the custody of the Board.

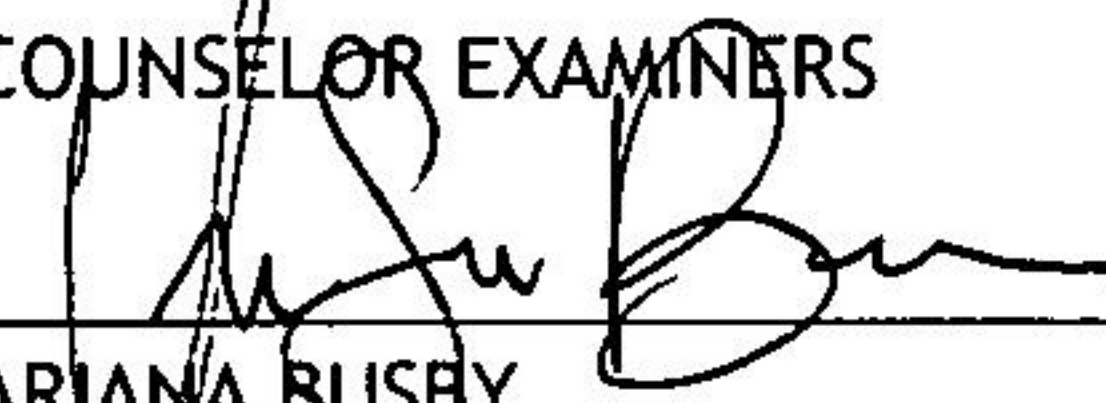
AGREED TO AND ACCEPTED BY:

APPLICANT



LESLIE KITTEL
LPCC 15664
LPC (Pending)

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


ARIANA BUSBY
Program Director

Effective this 9th day of
July, 2019.